

Do citizens have a duty to obey the law - and if so, where does that duty come from?

The answer and its justifications might alter the way that we construct political societies, how strongly laws are enforced within a state, and what actions citizens might take against unjust conditions. If a law is deemed immoral under some reasonable moral framework, how should citizens react, and how might reactions affect the stability of the state? How much can one person infringe on the rights of another for a beneficial outcome? In this essay, I will introduce major arguments for and against political obligation by prominent political philosophers John Simmons (does not believe in political obligation) and Christopher Wellman (who does). I will use the arguments of each in an attempt to push the stance of philosophical anarchism. We will be concerned with the conditions that might bring someone to have a political obligation, potential effects of rejecting political obligation, and the underlying moral frameworks that might justify political obligation. In his essay, I will analyze political obligation using the principle of fair play, utility, and consent theory. First, however, let's get our footing.

Political obligation is a duty to participate within a scheme of law or politics in a way that is not fundamentally justified by some other system. Questions that follow are whether it is just for societies to punish or regulate people who don't follow the system's, and what methods of enforcement may be allowed. Political obligation is different from moral obligation - if all obligations to a political society could arise from a moral system only, then there would be no duty binding citizens to political institutions. The result of the debate would determine which takes precedence in the event of conflict - a system of morality or law? However, the question is not so simple - the law can't stipulate its own existence, as that is a circular argument. People usually follow a legal obligation to the law because they don't want to go to jail or pay fines. That is not an argument from morality, just a personal choice weighing costs and benefits in a potentially imperfect government. To really justify someone's obligation to a political society, we must find a fundamental reason to obey political organizations and rules of government that are not rules of that system itself. Further, the reason must hold under scrutiny - i.e. if the justification were moral, one might also have to definitively prove that the morals are grounded. If moral systems are relative (there is no true good, only perceptions of it) differ from each other, then can there still be political obligation? There are a few questions that will help us sieve out an answer: does political obligation have to apply universally, or just to a well defined subset of people? Does someone have to consent to a system of laws to get benefits from those laws, and does getting benefits imply consent?

There are two prominent philosophers in the debate of political obligation that I will be discussing: Christopher Wellman, and John Simmons. Together, they co-wrote a book titled "Is There a Duty to Obey the Law?".

Simmons gives three main classes of arguments in favor of political obligation "ACCEPTANCE, FAIRNESS, AND POLITICAL OBLIGATION"¹ - "Transactional", "Associative", and "Natural Duty" theories. Transactional theories rely on someone accepting a scheme by using benefits or by explicitly consenting its rules. Associative theories say political obligation happens implicitly

¹ Henceforth to be referenced Simmons F&A

because of the associations (friends, community) you have. Natural Duty theories apply to everyone, regardless of location, or consent. All three attempt to combat the claim that there is no grounding basis for political obligation.

Transactional theories require a notion of consent to enter a political scheme. However, there are nuances here – is it reasonable to expect that all citizens consent because they have genuine alternatives to the state that they were born in? Does someone have to explicitly agree, or can they implicitly do so by accepting benefits that are generated by the public scheme? Simmons uses an example of a well: if someone vehemently opposes improving a communal well, do they have the right to use water after other people build it? Without other options it might be too difficult to get water, but even if there were low quality wells a little further away, does the person have to take extra effort to not make use of the upgraded one? More practically, police protection is a public good that would be hard to reject. Fair play is an example of transactional theory, as people voluntarily accept benefits to participate within the scheme.

Associative theories are non-voluntary - just by being born into a state that has laws and a constitution is enough to justify the obligation to obey those laws. Regardless of who you are or what you do, you are required to follow the rules because of the relationships you were born into. For instance, associative theorists argue that you would have a duty to obey your parents because you were born to them. One of the most prominently accepted of these among political theorists is “nonvoluntarist contract theory”. A quick counterexample might jump to mind - did citizens of early 1900’s Germany have a duty to obey the commands of the Nazi Reich? It seems intuitively obvious to reject this category of theory altogether, however there are still arguments worth considering that any other theory will have to contend with.

Natural Duty theories do not require consent, they apply to everyone everywhere. If someone is in a reasonably just state, then they must follow the rules of the state. Political obligations arise from a duty towards justice and each other instead of duties generated by consent or by a specific relationship towards other people. Justice, here, is hard to define. These struggle with questions that are less general though - what is special about a specific country, a specific law, if laws are unique between places.

I will now focus on discussion around the highly successful “Fair Play” theory, using the modified formulation of it by philosopher John Rawls² in his essay “Legal Obligation and the Duty of Fair Play”. The principle of Fair Play requires people to have as much liberty as possible without restricting the freedoms of other people, without any injustice towards any group. If I kill someone, they are not free to pursue their passions, so I have a duty to not kill. Rawls’ Fair play also stipulates that the government is a functional democracy, where people as a collective work together to vote laws into being based on their own perceptions of what is the most right. For people to have an obligation to the laws decided collectively, the overall social setup must be just (i.e. the constitution), the scheme shouldn’t collapse entirely if some people don’t consent or cooperate, and anyone who voluntarily accepts benefits has to follow the scheme.

² Fair Play was originally formulated by Herbert Hart (to the best of my knowledge)

Further, justice within the scheme must come before utility – no one would agree to being mistreated even if it would lead to an overall greater amount of utility, so no one can break a law to improve their personal utility while potentially harming someone else.

Rawls' formulation of fair play fights two issues with political obligation: unjust laws, and utility. Rawls summarizes in his paper: "... and if one has accepted the benefits of its working and intends to continue doing so, and if the rule enacted is within certain limits, then one has an obligation, based on the principle of fair play, to obey it when it comes one's turn. In accepting the benefits of a just constitution one becomes bound to it, and in particular one becomes bound to one of its fundamental rules: given a majority vote in behalf of a statute, it is to be enacted and properly implemented" (Rawls, 122). Consider this scenario: there are two proposed laws - one that I think is just and the other not. If I vote for one that I believe is good, but the one I think is bad is enacted, do I have a duty to follow that law? For Rawls, this is based on the magnitude of the justice, and whether there is a reasonable ability for me to repeal the law, and the assumption that the current standing majority are acting on a good basis according to the principles of fair play.

Despite appreciation for the argument for Fair Play, Simmons argues that it is not sufficient to generate political obligation with counter thought experiments. Fair Play, as a consent theory, still only binds those who have genuinely accepted its benefits. There are some types of benefits that can be classified as open (impossible to reject), or at least largely available (and therefore burdensome to reject). It is possible for people to strongly oppose these benefits and still (intentionally or not) receive their benefits as a free rider because the rest of the congregation decided to implement changes. Fair play isn't just consent theory - if you steal benefits that you didn't consent to being made, you still have to follow the regulations behind them - but it still fails for the requirement of consent because of the existence of open benefits.

Further, people's views are not all uniform - some may appreciate different aspects of life, and could thoroughly agree on what is optimal. For example: garden maintenance. If most people hate weeds, but someone else genuinely likes them and doesn't want them removed, then the person who likes weeds shouldn't have an obligation to do the weeding. Even if someone dislikes weeds, they might not value the absence of weeds enough to dedicate their time, which they would far rather be dedicating to something else (The Principle of Fair Play, Simmons, 21). This strongly positions the consent aspect of fair play as morally relative, since the duties to do things depend entirely on people's own view points - so there isn't holding power if people disagree. To be an insider in the fair play scheme, someone has to knowingly consent to the benefits and the work required, and genuinely perceive the benefits to be worth the personal cost to them. Simmons argues that most citizens are either those "who have not 'accepted' because they have not taken the benefits (with accompanying burdens) willingly, and those who have not 'accepted' benefits because they do not regard the benefits of government as the products of a cooperative scheme" (The Principle of Fair Play, Simmons, 25). If acceptance/consent are taken literally, then people don't fall into the category of those who are bound to the laws of the government.

Fair play, while highly attractive, is not sufficient to generate political obligations.